



Procedure No: EXP202201648 (PS/553/2022)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 17/01/22, Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against the entity COLVACAL 2019, S.L. with CIF: B67503292 (hereinafter, the complained party), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 11/2022, of June 28, General Telecommunications Law (LGTEL). The reasons stated in the complaint were, essentially, that, despite being registered in the Robinson List since February 2021, on 12/01/22, at 10:48 hours, he received a call from the phone ***PHONE.1 making a commercial offer from MasqLuz, without ever having been a customer of that company.

Along with the complaint, the following documentation was submitted:

- Certificate of the registration of the complainant's phone number in the Robinson List since 16/02/2021.
- Screenshot showing the receipt of a phone call on January 12, 2022, at 10:48 hours, from the calling line ***PHONE.1.

SECOND: On 10/02/22, this Agency sent a letter to the entity MASQLUZ 2020, S.L., requesting information regarding the complaint filed, in accordance with the provisions of Article 65.4 of the LOPDGDD.

THIRD: On 15/03/22, a response was received by this Agency from the entity to the request made, stating, in essence, that they do not know the ownership of the phone line ***PHONE.1 and that they have not processed any personal data of the complainant at any time.

FOURTH: On 17/03/22, the Director of the Spanish Agency for Data Protection issued an agreement to admit the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD, upon finding possible rational indications of a violation of the regulations within the scope of the competencies of the Spanish Agency for Data Protection.

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FIFTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of the GDPR and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, carrying out, among others, the following actions and being aware, among others, of the following points:

- The ownership of this phone number was requested from TELSON SPAIN S.L., the final operator managing the calling phone number indicated in the complaint, and on 16/05/22 a response was received by this Agency stating that at the time of the call indicated in the complaint, the phone number in question was assigned to the entity COLVACAL 2019, S.L.

SIXTH: On 07/06/22, in the exercise of the powers conferred by Article 58.1 of the GDPR and Article 67 of the LOPDGDD, information was requested regarding the points raised in the complaint from the entity COLVACAL 2019, S.L.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was

received by the entity COLVACAL 2019, S.L. on 07/06/22, as recorded in the computer system of this Agency. However, there is no record in this Agency that a response to this request has been made. SEVENTH: On 04/11/22, the Director of the Spanish Agency for Data Protection initiated sanctioning proceedings against the complained entity, upon finding reasonable indications of a violation of the provisions established in Article 48.1.b) of the LGT, in force at the time the events occurred, in relation to Article 23.4 of the LOPDGDD, with an initial sanction of 500 euros (five hundred euros).

The transfer, which was carried out in accordance with the rules established in the LPACAP, was received as recorded in the information system of this Agency on 14/12/22.

Once the initiation of the file was notified, there is no record that the complained party has made allegations regarding the initiation agreement of the procedure. In this regard, Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, taking into account that the complained party has not made allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

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PROVEN FACTS.

From the actions carried out in this procedure and from the information and documentation presented, the following facts have been established:

First: Along with the complaint, the following documentation is submitted:

- Certificate of the registration of the complainant's phone number in the Robinson List since 16/02/2021.
- Screenshot showing the receipt of a phone call on January 12, 2022, at 10:48 hours, from the calling line ***PHONE.1.

Second: Requested the ownership of this phone number from TELSON SPAIN S.L., the final operator managing the calling phone number indicated in the complaint, on 16/05/22, a response was received in this Agency stating that at the time of the call indicated in the complaint, the phone number in question was assigned to the entity COLVACAL 2019, S.L.

LEGAL GROUNDS

I-

Competence

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this sanctioning procedure, by virtue of the powers granted by Article 58.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR) and according to the provisions of Articles 47, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

In accordance with the provisions of Article 114.1.b) of the LGTEL, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this sanctioning procedure.

II.-

On commercial telephone calls:

According to the complainant's statement, he received a commercial phone call from the phone number ***PHONE.1, on 12/01/22, without having previously requested it and without having any commercial relationship with the entity that called. He also indicates that he has been included in the Robinson List since February 2021.

II.-2

Committed infringement

Regarding the rights of users concerning telephone calls with advertising messages they receive, Article 48.1.b) of Law 9/2014, of May 9, General Telecommunications (LGT), in force when the events occurred on 12/01/22, states the following:

"1. Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of electronic communications services shall have the following rights:

b) To object to receiving unwanted calls for commercial communication purposes made through systems other than those established in the previous letter and to be informed of this right."

However, since the aforementioned article does not explicitly configure the right to object, we must refer to the data protection regulations where it is indeed regulated. That is, Articles 21 GDPR and 23 LOPDGDD respectively.

Thus, Article 21 GDPR establishes, regarding the right to object to the processing of personal data, that:

"1. The data subject shall have the right to object at any time, on grounds relating to his or her particular situation, to personal data concerning him or her being processed based on the provisions of Article 6(1)(e) or (f), including profiling based on those provisions.

The controller shall cease to process the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. Where the processing of personal data is for direct marketing purposes, the data subject shall have the right to object at any time to the processing of personal data concerning him or her, including profiling to the extent that it is related to such marketing.

3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.

4. At the latest at the time of the first communication with the data subject, the right referred to in paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise his or her right to object by automated means using technical specifications. (...)"

While Article 23.4 LOPDGDD establishes that:

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"Those who intend to carry out direct marketing communications must first consult the advertising exclusion systems that may affect their actions, excluding from processing the data of those affected who have expressed their opposition or refusal to it. For these purposes, to consider the previous obligation fulfilled, it will be sufficient to consult the exclusion systems included in the list published by the competent control authority."

From all of the above, it follows that making commercial calls to the complainant after registering their telephone line in the Robinson List Service constitutes a violation of the provisions of Article 48.1.b) of the LGT, in force when the events occurred on 01/12/22.

II.-3

Sanction

This infringement is classified as "minor," in Article 78.11) of the LGT, which defines it as: "The non-compliance with public service obligations, public obligations, and the violation of the rights of consumers and end users as established in Title III of the Law and its implementing regulations," and may be sanctioned with a fine of up to €50,000, in accordance with Article 79.d) of the aforementioned LGT.

According to these criteria, it is deemed appropriate to impose a sanction of €500 (five hundred euros) on the entity being complained against for the infringement of Article 48.1.b) of the LGT, in relation to Article 23.4 of the LOPDGDD, regarding the commercial telephone call after registering their telephone line in the Robinson List Service.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
RESOLVES

FIRST: TO IMPOSE on the entity COLVACAL 2019, S.L. with CIF: B67503292, for the infringement of Article 48.1.b) of the LGT, in force when the events occurred, in relation to Article 23.4 of the LOPDGDD, a sanction of €500 (five hundred euros).

SECOND: TO NOTIFY this resolution to the entity COLVACAL 2019, S.L.

THIRD: TO WARN the sanctioned party that the imposed sanction must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

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Once the notification is received and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 82 of Law 62/2003, of December 30, on fiscal, administrative, and social order measures, this Resolution will be made public once it has been notified to the interested parties. The publication will be carried out in accordance with the provisions of Instruction 1/2004, of December 22, of the Spanish Agency for Data Protection regarding the publication of its Resolutions.

Against this resolution, which concludes the administrative procedure, and in accordance with the provisions of Articles 112 and 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of 13/07, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronicaweb/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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